

Publishing Agreement

for Contributions in Collected Works

SPRINGER NATURE

This Publishing Agreement (this “**Agreement**”) has been approved by and entered into between

Daniel B. Klein (home address: 9745 Kings Crown Court, Apt. 102, Fairfax, VA 22031)

whereas, in the event that the Author is more than one person, *[name of the corresponding author]* serves as corresponding author (the “**Corresponding Author**”)

on the one part and

Springer Nature Switzerland AG
Gewerbestrasse 11, 6330 Cham, Switzerland
(the “**Publisher**”)

on the other part;
together hereinafter referred to as the “**Parties**”.

The Publisher intends to publish the Author’s contribution in a collected work provisionally entitled:

Questioning the State

edited by:

Eugene Callahan
(the “**Editor**”)

The Publisher intends to publish the Work under the imprint **Palgrave Macmillan**.

The Work may be published in the book series **Palgrave Studies in Classical Liberalism**.

§1 Contracting authors

When the Author is more than one person then, unless otherwise indicated in this Agreement or agreed in writing by the Publisher: (a) the expression “Author” as used in this Agreement will apply collectively for all such persons (each a “**co-author**”); (b) the Corresponding Author hereby warrants and represents that all co-authors of the contribution have expressly agreed that the Corresponding Author has full right, power and authority to sign this Agreement on their behalf, that the Corresponding Author is entitled to act on their behalf, and that they shall be bound by the Corresponding Author, with respect to all matters, responsibilities, notices and communications related to this Agreement; the Corresponding Author shall obtain authorisations and make them available to the Publisher on request; and (c) each co-author is jointly and severally responsible for the Author’s obligations under this Agreement which apply to each co-author individually and to the co-authors collectively and the Publisher shall not be bound by any separate agreement or legal relationship as between the co-authors.

§2 Subject of the Agreement

2.1 The Author will prepare a contribution provisionally entitled:

“Is Justification of the Existence of Government a Useful Question?”

The expression “**Contribution**” as used in this Agreement means the contribution as identified above, and includes without limitation all related material delivered to the Publisher by or on behalf of the Author whatever its media and form (including text, graphical elements, tables, videos and/or links) in all versions and editions in whole or in part.

2.2 The Contribution may contain links (e.g. frames or in-line links) to media enhancements (e.g. additional documents, tables, diagrams, charts, graphics, illustrations, animations, pictures, videos and/or software) or to social or functional enhancements, complementing the Contribution, which are provided on the Author’s own website or on a third party website or repository (e.g. maintained by an institution) subject always to the Author providing to the Editor, at the latest at the delivery date of the manuscript for the Contribution, an accurate description of each media enhancement and its respective website or repository, including its/their owner, nature and the URL. The Publisher is entitled to reject the inclusion of, or suspend, or delete links to all or any individual media enhancements.

2.3 In the event that an index is deemed necessary, the Author shall assist the Editor in its preparation (e.g. by suggesting index terms), if requested by the Editor.

§ 3 Rights Granted

3.1 The Author hereby grants to the Publisher the perpetual, sole and exclusive, world-wide, transferable, sub-licensable and unlimited right to publish, produce, copy, distribute, communicate, display publicly, sell, rent and/or otherwise make available the Contribution in any language, in any versions or editions in any and all forms and/or media of expression (including without limitation in connection with any and all end-user devices), whether now known or developed in the future, in each case with the right to grant further time-limited or permanent rights. The above rights are granted in relation to the Contribution as a whole or any part and with or in relation to any other works.

Without limitation, the above grant includes: (a) the right to edit, alter, adapt, adjust and prepare derivative works; (b) all advertising and

shall be entitled to retain its share of any sum payable by any third party under any such licence or sub-licence;
 (b) except where stated otherwise in this Agreement, any claim which either Party may have against the other for damages or otherwise in respect of any rights or liabilities arising prior to the date of termination;
 (c) the Publisher's right to continue to sell any copies of the Work which are in its power, possession or control as at the date of expiry or termination of this Agreement for a period of 6 months on a non-exclusive basis.

§13 General Provisions

13.1 This Agreement, and the documents referred to within it, constitute the entire agreement between the Parties with respect to the subject matter hereof and supersede any previous agreements, warranties, representations, undertakings or understandings. Each Party acknowledges that it is not relying on, and shall have no remedies in respect of, any undertakings, representations, warranties, promises or assurances that are not set forth in this Agreement. Nothing in this Agreement shall exclude any liability for or remedy in respect of fraud, including fraudulent misrepresentation. This Agreement may be modified or amended only by agreement of the Parties in writing. For the purposes of modifying or amending this Agreement, "in writing" requires either a document written and signed by both the Parties or an electronic confirmation by both the Parties with DocuSign or a similar e-signature solution. Any notice of termination and/or reversion and, where applicable, any preceding notices (including any requesting remediable action under the Clause "**Termination**") must be provided in writing and delivered by post, courier or personal delivery addressed to the physical address of the relevant Party as set out at the beginning of this Agreement or any replacement address notified to the other Party for this purpose. All such notices shall become effective upon receipt by the other Party. Receipt is deemed to have taken place five working days after the respective notice was sent by post or left at the address by courier or personal delivery. If the Publisher is the terminating Party the notice need only be provided to the address of the Corresponding Author. If the Author is the terminating Party a copy of the notice must also be sent to the Publisher's Legal Department located at Heidelberger Platz 3, 14197 Berlin, Germany.

13.2 Nothing contained in this Agreement shall constitute or shall be construed as constituting a partnership, joint venture or contract of employment between the Publisher and the Author. No Party may assign this Agreement to third parties but the Publisher may assign this Agreement or the rights received hereunder to its affiliated companies. In this Agreement, any words following the terms "include", "including", "in particular", "for example", "e.g." or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms.

13.3 If any difference shall arise between the Author and the Publisher concerning the meaning of this Agreement or the rights and liabilities of the Parties, the Parties shall engage in good faith discussions to attempt to seek a mutually satisfactory resolution of the dispute. This Agreement shall be governed by, and shall be construed in accordance with, the laws of *Switzerland*. The courts of *Zug, Switzerland* shall have the exclusive jurisdiction.

13.4 A person who is not a party to this Agreement (other than an affiliate of the Publisher) has no right to enforce any terms or conditions of this Agreement. This Agreement shall be binding upon and inure to the benefit of the successors and assigns of the Publisher. If one or more provisions of this Agreement are held to be unenforceable (in whole or in part) under applicable law, each such provision shall be deemed excluded from this Agreement and the balance of the Agreement shall remain valid and enforceable but shall be interpreted as if that provision were so excluded. If one or more provisions are so excluded under this Clause then the Parties shall negotiate in good faith to agree an enforceable replacement provision that, to the greatest extent possible under applicable law, achieves the Parties' original commercial intention.

The Corresponding Author signs this Agreement on behalf of any and all co-authors.

Signature of Corresponding Author:



Date:

